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Dear clients,

Regulatory changes remain top of mind for the crypto space, as the US Securities and Exchange Commission (SEC) voted to approve the 19b-4 filings of eight spot ether (ETH) exchange traded funds (ETFs). The 19b-4 filings are necessary for exchanges proposing rule changes to list a new ETF, but issuers must wait until their S-1 registration statements are approved before these products can trade on exchanges. The latter could take anywhere from days to weeks or even months as the deadlines only pertained to the 19b-4 forms. While this delay affects potential flows in the near-term, we believe that the decision itself is unequivocally positive for the crypto asset class.

The Financial Innovation and Technology for the 21st Century Act (FIT21) passed the US House of Representatives in a strong, bipartisan vote of 279 to 136, with 71 Democrats crossing party lines in support. We think the outcome of this vote is a hugely constructive signal for clearer industry regulations in the US. In addition to delineating the jurisdictions of the SEC and CFTC, the bill importantly sets definitions for decentralized systems and decentralized governance. We think these definitions could elevate the importance of decentralization in protocol roadmaps if enacted into law.

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Best,
The Coinbase Institutional Team

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